Family Law Peak Season Prep Kit for you and your clients

The Family Law Peak Season Prep Kit is a ready-to-use resource package designed to help family lawyers streamline their client intake, case preparation, and document workflows ahead of the busy January season.

This toolkit includes four key components:

- **Pre-Divorce Case Preparation Checklist** – A comprehensive guide for lawyers to collect the critical financial, personal, and legal information needed before filing for divorce.
- **Email Templates** – Professionally written templates to communicate effectively with clients throughout the pre-divorce and active case stages.
- **Document Templates** – Ready-to-use legal templates to support efficient drafting and ensure consistency across common family law documents.
- **Process Optimization: Organizing your Matters into stages** – A practical reference for organizing a divorce matter into defined stages, helping firms improve efficiency and deliver a better client experience.

Pre-Divorce Case Preparation Checklist

A comprehensive pre-case checklist is key to enable lawyers to gather the facts, documents, and context needed to assess each client's situation and develop a sound legal strategy. This Pre-Divorce Case Preparation Checklist outlines key areas to review during intake and preparation.

Client Intake and Background Information

- ☐ Full legal names, dates of birth, addresses, and contact details for both spouses
- ☐ Names and dates of birth for all children
- ☐ Date and place of marriage, and date of separation (if applicable)
- ☐ Details of any prior marriages
- ☐ Summary of the relationship and factors contributing to the separation
- ☐ Primary roles and responsibilities during the marriage (e.g., caregiver, income earner, property manager)
- ☐ Existence and copies of any prenuptial or postnuptial agreements

Financial Overview

Income and Employment

- ☐ Employment history and current employer information for both spouses
- ☐ Most recent paystubs (covering the past 3–12 months)
- ☐ Individual and joint tax returns for the past three to five years
- ☐ Records of additional income (bonuses, commissions, rental income, benefits, etc.)
- ☐ For self-employed clients: business tax returns, profit-and-loss statements, and balance sheets

Assets and Property

- ☐ Real estate documents: deeds, mortgage statements (current and original), property tax assessments, and appraisals
- ☐ Vehicle documentation: titles, loan statements, and registrations for all vehicles
- ☐ Bank account statements for all individual and joint accounts (checking, savings, money market)
- ☐ Investment account statements (stocks, bonds, mutual funds, CDs, etc.)
- ☐ Retirement account statements (e.g. 401(k), IRA, RRSP, pension), including historical statements from the date of marriage
- ☐ Documentation of valuable personal property (art, jewelry, collectibles) and any appraisals
- ☐ List of contents of safety deposit boxes
- ☐ Documentation of inheritances or gifts received during the marriage

Debts and Liabilities

- ☐ Credit card statements and balances
- ☐ Loan documents (mortgage, vehicle, personal, student loans)
- ☐ Outstanding bills or recurring financial obligations (utilities, tuition, childcare, medical expenses)

Insurance Coverage

- ☐ Life insurance policies (beneficiaries, cash values)
- ☐ Health insurance details and premium information
- ☐ Homeowners, renters, and auto insurance policies

Child-Related Information

- ☐ Current custody and visitation arrangements (formal or informal)
- ☐ Details of childcare providers, schedules, and associated costs
- ☐ Records of child-related expenses: education, extracurriculars, healthcare, and insurance
- ☐ Existing custody or parenting orders
- ☐ Documentation for any child with medical, developmental, or educational special needs

Legal and Estate Planning Documents

- ☐ Certified marriage certificate
- ☐ Copies of any prior separation or settlement agreements
- ☐ Existing restraining or protective orders (if applicable)
- ☐ Powers of attorney, healthcare directives, or living wills
- ☐ Wills and trusts for either spouse or for the children

Immediate Client Guidance

- ☐ Advise the client to locate and provide copies of all requested financial and legal documents
- ☐ Counsel the client against transferring, concealing, or dissipating assets before disclosure
- ☐ Advise against major financial decisions without legal consultation
- ☐ Recommend maintaining neutrality and not involving children in disputes
- ☐ If there are concerns about asset concealment, instruct on securing records and preserving evidence
- ☐ Encourage establishing individual financial accounts when appropriate

Case Organization and Strategy

- ☐ Maintain a document log to track materials received from the client
- ☐ Review completeness and accuracy of financial disclosures
- ☐ Identify potential areas of dispute (property valuation, custody, spousal support)
- ☐ Discuss available resolution methods (mediation, collaborative divorce, or litigation)
- ☐ Establish a clear communication and documentation protocol with the client
- ☐ Develop a timeline for discovery, filings, and settlement discussions

Documents

- ☐ Individual and business tax returns (past three years)
- ☐ Recent paystubs or other proof of income for both spouses
- ☐ Prenuptial, postnuptial, or separation agreements
- ☐ Bank and savings account statements (individual and joint)
- ☐ Investment and retirement account statements, including pre-marital balances
- ☐ Deeds, mortgages, property tax statements, and real estate appraisals
- ☐ Credit card, loan, and debt statements
- ☐ Insurance policies (life, health, auto, home, renters)
- ☐ Documentation of child-related expenses and arrangements
- ☐ Lists of assets, debts, and high-value personal property
- ☐ Documentation of inheritances or gifts
- ☐ Relevant correspondence, court filings, or legal notices

Effective Family Law Email Templates

Send more effective emails to help get what you need from clients, fast. Establishing strong client connections is crucial in today's digital age. This is especially true for family law firms. Use these easy-to-use email templates to achieve different objectives for your firm from winning new clients to driving repeat business.

Objective: Increase repeat business - Check in with past divorce clients

(Available as an automated campaign template in Clio Grow)

Subject line: Has your agreement kept up with life changes?

Email body:

At [INSERT FIRM NAME], we highly value the trust you placed in us during your recent divorce proceedings. Our dedicated legal professionals are here to support you with any future legal matters you may face, including:

- Post-divorce modifications
- Child custody agreements
- Spousal support arrangements

Whether you need further legal support or have new inquiries, we are ready to help.

Reply to this email to discuss your needs and schedule a consultation.

We look forward to hearing from you,

[INSERT SENDER NAME]

Objective: Hire prospective clients

Subject line: Let us help you navigate family legal matters

Email body:

Don't let legal challenges hold you back—at [INSERT FIRM NAME], we're here to guide you through the process so you can focus on moving forward with your life.

We're dedicated to making this journey as simple and stress-free as possible. Our areas of focus include:

- Divorce
- Child Custody
- Adoptions
- Guardianship
- Grandparent's Rights
- Relocation

- Pre & Post Nuptial Agreements

If the process feels overwhelming or you're unsure of the next steps, we're here to help. **Schedule your consultation today** by contacting us at [INSERT FIRM CONTACT DETAILS]. Let's take the next step together.

Warm regards,

[INSERT SENDER NAME]

Objective: Revive lost opportunities

Subject line: Ready to revisit your family legal needs? We're here to help.

Email body:

We understand that timing is everything, and while you previously considered working with [INSERT FIRM NAME], we want you to know that it's never too late to get the legal support you need.

Our team is here to help you navigate the complexities of the process, so you can focus on moving forward with confidence. We specialize in:

- Divorce
- Child Custody
- Adoptions
- Guardianship
- Grandparents' Rights
- Relocation
- Pre & Post-Nuptial Agreements

If the process still feels overwhelming or you're unsure of the next steps, let's reconnect. **Schedule your consultation** by contacting us at [INSERT FIRM CONTACT DETAILS]. We're here to help you take the next step forward.

Warm regards,

[INSERT SENDER NAME]

Objective: Increase repeat business

Subject line: Need to update your legal agreements?

Email body:

We at [INSERT FIRM NAME] wanted to check in to see how your legal agreements are working for you.

In challenging times, circumstances can change, and it's important to ensure your agreements still reflect your current needs. Whether adjustments are necessary to keep them up to date or certain terms aren't being followed, we're here to help you take the appropriate action.

Our areas of focus include:

- Divorce
- Child Custody
- Adoptions
- Guardianship
- Grandparent's Rights
- Relocation
- Pre & Post Nuptial Agreements

We're committed to making this process as straightforward and stress-free as possible. **Schedule your consultation today** by contacting us at [INSERT FIRM CONTACT DETAILS].

We're here to support you every step of the way.

Warm regards,

[INSERT SENDER NAME]

Objective: Increase repeat business - End of school year custody agreement check-in

Subject line: School's out–is it time to check-in?

As the school year comes to a close, all of us at [INSERT LAW FIRM NAME] want to extend our heartfelt congratulations to the students, graduates, parents, and families in our community.

Whether you're celebrating a child's first year of school, a high school graduation, or the completion of a college degree, these milestones are a testament to perseverance, dedication, and support from loved ones.

This time of year also presents a valuable opportunity to reflect and plan ahead. We encourage families to use this transitional season to check in on existing parenting plans, custody arrangements, or other agreements to ensure they continue to serve the best interests of everyone involved. Life changes quickly—especially with growing children—and your legal arrangements should evolve to reflect your family's current needs.

If you're considering updates to your current agreements or simply want to talk through your options, we invite you to reach out and schedule a time to speak with us. Simply reply to this email or contact us at [INSERT FIRM CONTACT DETAILS].

Wishing you a summer full of joy, well-deserved rest, and exciting new opportunities ahead!

Document Templates

Ready-to-Use MS Word templates for Family Law
Every family law matter requires care, precision, and efficiency. This downloadable template pack includes the core documents you use most—helping you draft faster, stay consistent, and devote more time to guiding clients through important transitions.

- Notice of Appearance
- Property Settlement Agreement
- Complaint for Divorce
- Marital Separation Agreement

Process Optimization With Matter Stages

ON-DEMAND WEBINAR

Optimizing Your Legal Workflow: **How to organize your Matters into stages and task lists**

Tired of inconsistent processes, endless manual tasks, and workflow "improvements" that somehow make things worse?

Most firms know their processes could be better, but figuring out what to fix (and how to measure success) can feel overwhelming. Without a clear roadmap, it's easy to make changes that don't move the needle.

Watch this on-demand webinar with optimization expert, and family law firm owner, Mechelle Woznicki, Collaborative Attorney & Mediator at Woznicki Law PLC. With the help of two PDF worksheets she will show you exactly how to tackle the workflow inefficiencies that slow your family law firm down.

You'll learn how to:

- Identify your biggest time drains using diagnostic questions that reveal where work stalls or gets duplicated
- Focus on metrics that matter so you can prioritize changes that actually improve your firm's performance
- Choose the right automation tools for your specific needs—from intake to task management—and implement them effectively

[Watch the Recording]

PROCESS OPTIMIZATION WORKSHEET

Matter Stage Definition and Mapping Guide

A Practical Guide for Organizing Case Workflow

Why Define Matter Stages?
Breaking down a matter into clear, structured stages helps your team:

- Understand where the case stands at any time
- Assign the right tasks to the right team members
- Improve communication, delegation, and accountability
- Enable automation and templates using tools like Clio

What Is a "Stage"?

A Matter **Stage** is a chapter in a case defined by a "flurry" of activity, followed by a natural, noticeable pause.

Stages Are:

- Activity-based – A "flurry" of coordinated tasks
- Cross-functional – Involving attorneys, paralegals, admins and clients
- Time-bound – Begins and ends with a noticeable event like a filing, hearing or agreement.

How to Define Your Matter Stages

Use this simple framework to break down any case type:

Step	Prompt	Example (Divorce Case)
Identify Milestones	What are the major turning points?	Intake, Filing, Service, Temporary Orders, Discovery, Final Hearing
Group Activities	What tasks happen around that milestone?	Draft discovery, gather financials, review docs
Assign Roles	Who typically performs each task?	Paralegal drafts, attorney and lawyer reviews
Name the Stage	Use simple, clear language.	"Financial Discovery"

Pro Tip: *Define Stages first, then break them into repeatable Task Lists that can be templated and automated in Clio.*

Example:
Stage: *Initial Filing*
Tasks: Conflict Check → Draft Complaint → File → Serve → File Proof of Service

STEP 1—Identify Key Stages in Your Case Type

Stage	Stage Name (Milestone or Activity Cluster)	What Happens in This Stage? (Key Activities)	How Do You Know It's Done?
1			
2			
3			
4			
5			

STEP 2—Break Down the Tasks in Each Stage

Use the chart below to map out the repeatable steps performed in each stage and who handles them.

Stage Name	Task Description	Assigned Role (Attorney/Lawyer, Paralegal, Admin, Client)

STEP 3 - Flag Tasks for Automation or Templating

Put a ✓ next to tasks that are good candidates for templating or automating in Clio.

Task	✓ Template	✓ Automate	Notes
	☐	☐	
	☐	☐	
	☐	☐	
	☐	☐	
	☐	☐	
	☐	☐	

Final Thoughts

- Do your stages align with natural pauses in the case?
- Are your tasks repeatable from case to case?
- Are the right people doing the right work at each stage?
- Have you identified opportunities to template or automate?

Matter Stage Discovery Questions

Section 1: Case Lifecycle Overview

1. Walk me through a typical case from start to finish.
   → What are the major milestones or turning points?
2. At what points does the pace of the case naturally slow down or pause?
   → What happens right before and after that pause?
3. If you had to break the case into chapters, what would each chapter be called?
4. What specific events signal the end of one phase and the start of another?
   (e.g., "once service is completed," "after the temporary hearing," etc.)

Section 2: Activities Within Each Stage

5. What tasks typically happen during this phase?
   → Can you list them step-by-step?
6. Who is responsible for each task? Attorney/Lawyer, paralegal, admin, client?
7. Are there tasks that always repeat from case to case during this stage?
8. Are any tasks conditional?
   → (e.g., "We only request discovery if they don't settle quickly.")

Section 3: Transitions and Triggers

9. What event or deliverable triggers the *start* of this stage?
10. What needs to happen to *complete* this stage?
    → A filing? A signed agreement? A court date?
11. Do you hand off work at this point to another team member? If so, when and how?

Section 4: Standardization and Automation

12. Do you already have a checklist or task list you follow for this stage?
    → If yes, can we review it together?
13. Which tasks could be templated (e.g., forms, letters, motions)?
14. Which steps could be automated using reminders, triggers, or task lists in Clio?
15. Do you ever forget steps or feel like you're duplicating work at this stage?

Section 5: Final Review

16. If you had to name this stage so a new hire could understand it, what would you call it?
17. What do you wish was clearer or easier during this part of the process?
18. Are there any bottlenecks or recurring frustrations during this stage?
19. Do your clients notice or feel this stage (e.g., lots of communication, major progress)?
20. Would anything about this stage change based on case type or client behavior?